

The Companies (Removal of Names of Companies from the Register of Companies) Rules, 2016

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Union of India - Act

The Companies (Removal of Names of Companies from the Register of Companies) Rules, 2016

UNION OF INDIA

India

The Companies (Removal of Names of Companies from the Register of Companies) Rules, 2016

Rule

THE-COMPANIES-REMOVAL-OF-NAMES-OF-COMPANIES-FROM-THE-REGISTER-OF-COMPANIES-RULES-2016
of 2016

Published on 26 December 2016

Commenced on 26 December 2016

[This is the version of this document from 26 December 2016.]

[Note: The original publication document is not available and this content could not be verified.]

The Companies (Removal of Names of Companies from the Register of Companies) Rules, 2016

Published vide Notification No. G.S.R. 1174(E), dated 26th December, 2016

Last Updated 10th May, 2019

Ministry of Corporate Affairs

G.S.R. 1174(E). - In exercise of the powers conferred by sub-sections (1), (2) and (4) of section 248 read with section 469 of the Companies Act, 2013 (
18 of 2013

) and in supersession of the Companies (Central Government) General Rules and Forms, 1956 except as respects things done or omitted to be done before such supersession, the Central Government hereby makes the following rules, namely: -

1.

Short title and commencement.

(1)

These rules may be called the Companies (Removal of Names of Companies from the Register of Companies) Rules, 2016.

(2)

They shall come into force on the date of their publication in the Official Gazette.

2.

Definitions.

(1)

In these rules, unless the context otherwise requires, -

(a)

"Act" means the Companies Act, 2013 (18 of 2013

);

(b)

"Form" or "e-Form" means a non-electronic form or an electronic form annexed to these rules.

(2)

Words and expressions used in these rules but not defined and defined in the Act or in the Companies (Specification of Definitions Details) Rules, 2014, shall have the same meanings respectively assigned to them in the Act or in the said rules.

3.

Removal of name of company from the Register on suo-motu basis.

(1)

The Registrar of Companies may remove the name of a company from the register of companies in terms of sub-section (1) of section 248 of the Act:

Provided that following categories of companies shall not be removed from the register of companies under this rule and rule 4, namely:-

(i)

listed companies;

(ii)

companies that have been delisted due to non-compliance of listing regulations or listing agreement or any other statutory laws;

(iii)

vanishing companies;

(iv)

companies where inspection or investigation is ordered and being carried out or actions on such order are yet to be taken up or were completed but prosecutions arising out of such inspection or investigation are pending in the Court;

(v)

companies where notices under section 234 of the Companies Act, 1956 (1 of 1956) or section 206 or section 207 of the Act have been issued by the Registrar or Inspector and reply thereto is pending or report under section 208 has not yet been submitted or follow up of instructions on report under section 208 is pending or where any prosecution arising out of such inquiry or scrutiny, if any, is pending with the Court;

(vi)

companies against which any prosecution for an offence is pending in any court;

(vii)

companies whose application for compounding is pending before the competent authority for compounding the offences committed by the company or any of its officers in default;

(viii)

companies, which have accepted public deposits which are either outstanding or the company is in default in repayment of the same;

(ix)

companies having charges which are pending for satisfaction; and

(x)

companies registered under section 25 of the Companies Act, 1956 or section 8 of the Act.

Explanation. - For the purposes of clause (iii), the expression "vanishing company" means a company, registered under the Act or previous company law or any other law for the time being in force and listed with Stock Exchange which has failed to file its returns with the Registrar of Companies and Stock Exchange for a consecutive period of two years, and is not maintaining its registered office at the address notified with the Registrar of Companies or Stock Exchange and none of its directors are traceable.

(2)

For the purpose of sub-rule (1), the Registrar shall give a notice in writing in Form STK 1 which shall be sent to all the directors of the company at the addresses available on record, by registered post with acknowledgment due or by speed post.

(3)

The notice shall contain the reasons on which the name of the company is to be removed from the register of companies and shall seek representations, if any, against the proposed action from the company and its Directors along with the copies of relevant documents, if any, within a period of thirty days from the date of the notice.

4.

Application for removal of name of company.

(1)

An application for removal of name of the company under sub-section (2) of section 248 shall be made in Form STK-2 along with the fee of [ten thousand rupees:

Provided that no application in Form No. STK-2 shall be filed by a company unless it has filed overdue returns in Form No. AOC-4 (Financial Statement) or AOC-4 XBRL, as the case may be, and Form No. MGT-7 (Annual Return), up to the end of the financial year in which the company ceased to carry its business operations:

Provided further that in case a company intends to file Form No. STK-2 after the action under sub-section (1) of section 248 has been initiated by the Registrar, it shall file all pending overdue returns in Form No. AOC-4 (Financial Statement) or AOC-4 XBRL, as the case may be, and Form No. MGT-7 (Annual Return) before filing Form No. STK-2:

Provided also that once notice in Form No. STK-7 has been issued by the Registrar pursuant to the action initiated under sub-section (1) of section 248, a company shall not be allowed to file an application in Form No. STK-2.]

[Substituted 'five thousand rupees' by Notification No. G.S.R. 350(E), dated 8.5.2019 (w.e.f. 26.12.2016).]

(2)

Every application under sub-rule (1) shall accompany a no objection certificate from appropriate Regulatory Authority concerned in respect of following companies, namely :-

(i)

companies which have conducted or conducting non-banking financial and investment activities as referred to in the Reserve Bank of India Act, 1934 (

2 of 1934

) or rules and regulations thereunder;

(ii)

housing finance companies as referred to in the Housing Finance Companies (National Housing Bank) Directions, 2010 issued under the National Housing Bank Act, 1987 (53 of 1987);

(iii)

insurance companies as referred to in the Insurance Act, 1938 (

4 of 1938

) or rules and regulations thereunder;

(iv)

companies in the business of capital market intermediaries as referred to in the Securities and Exchange Board of India

Act, 1992 (

15 of 1992

) or rules and regulations thereunder;

(v)

companies engaged in collective investment schemes as referred to in the Securities and Exchange Board of India Act, 1992 (

15 of 1992

) or rules and regulations thereunder;

(vi)

asset management companies as referred to in the Securities and Exchange Board of India Act, 1992 (

15 of 1992

) or rules and regulations thereunder;

(vii)

any other company which is regulated under any other law for the time being in force.

(3)

The application in Form STK 2 shall be accompanied by -

(i)

indemnity bond duly notarized by every director in Form STK 3;

(ii)

a statement of accounts [in Form No. STK-8]

[Inserted by Notification No. G.S.R. 350(E), dated 8.5.2019 (w.e.f. 26.12.2016).]

containing assets and liabilities of the company made up to a day, not more than thirty days before the date of application and certified by a Chartered Accountant;

(iii)

An affidavit in Form STK 4 by every director of the company;

(iv)

a copy of the special resolution duly certified by each of the directors of the company or consent of seventy five per cent of the members of the company in terms of paid up share capital as on the date of application;

(v)

a statement regarding pending litigations, if any, involving the company.

5.

Manner of filing of application.

(1)

The application in Form STK 2 shall be signed by a director duly authorized by the Board in their behalf.

(2)

Where the director concerned does not have a registered digital signature certificate, a physical copy of the form duly filled in shall be signed manually by the director duly authorized in that behalf and shall be attached with the Form STK 2 while uploading the form.

6.

Form to be certified.

- The Form STK 2 shall be certified by a Chartered Accountant in whole time practice or Company Secretary in whole time Practice or Cost Accountant in whole time practice, as the case may be.

7.

Manner of publication of notice.

(1)

The notice under sub-section (1) or sub-section (2) of section 248 shall be in Form STK 5 or STK 6, as the case may be, and be-

(i)

placed on the official website of the Ministry of Corporate Affairs on a separate link established on such website in this regard;

(ii)

published in the Official Gazette;

(iii)

published in English language in a leading English newspaper and at least once in vernacular language in a leading vernacular language newspaper, both having wide circulation in the State in which the registered office of the company is situated.

Provided that in case of any application made under sub-section (2) of section 248 of the Act, the company shall also place the application on its website, if any, till the disposal of the application.

[Provided further that the publication of notice under clause (iii) of this sub-rule, in respect of cases falling under subsection (1) of section 248 shall be in Form No. STK 5A.]

[Inserted by Notification No. G.S.R. 355(E), dated 12.4.2017 (w.e.f. 26.12.2016).]

(2)

The Registrar of Companies shall, simultaneously intimate the concerned regulatory authorities regulating the company, viz, the Income-tax authorities, central excise authorities and service-tax authorities having jurisdiction over the company, about the proposed action of removal or striking off the names of such companies and seek objections, if any, to be furnished within a period of thirty days from the date of issue of the letter of intimation and if no objections are received within thirty days from the respective authority, it shall be presumed that they have no objections to the proposed action of striking off or removal of name.

8.

Manner of notarisation, apostilisation or consularisation of indemnity bond and declaration in case of foreign nationals or non-resident Indians.

- For the purposes of these rules, if the person is a foreign national or non-resident Indian, the indemnity bond, and declaration shall be notarised or apostilised or consularised.

9.

Notice of striking off and dissolution of company.

- The Registrar shall cause a notice under subsection (5) of section 248 of striking off the name of the company from the register of companies and its dissolution to be published in the Official Gazette in Form STK 7 and the same shall also be placed on the official website of the Ministry of Corporate Affairs.

10.

Applications or forms pending before Central Government.

- Any application or pending proceeding for striking off or Form-FTE filed with the Registrar of Companies prior to the commencement of these rules but not disposed of by such authority for want of any information or document shall, on its submission, to the satisfaction of the authority, be disposed of in accordance with the rules made under the Companies Act, 1956 (1 of 1956).

Form No. STK 1

Notice by Registrar for

removal of name of a company from the register of companies

[Pursuant to

sub-section (1) of section 248 of the Companies Act, 2013 and rule 3 of the Companies(Removal of Names of Companies from the Register of Companies) Rules, 2016]

Government of India

Ministry of Corporate Affairs

Office of the Registrar of Companies, (State)

(Address of ROC)

{|

Letter No.-----

Dated:-----

Reference:

In the matter of M/s ----- In the
matter of Companies Act, 2013

To,

.....

.....

(1) Pursuant to sub-sections (1) and (2) of Section 248 of the Companies Act, 2013, notice is hereby given that as per available record :-

the company

has failed to commence its business within one year of its incorporation; or

the company

is not carrying on any business or operation for a period of two immediately preceding financial years and has not made any application within such period for obtaining the status of a dormant company under section 455.

the company

has filed an application under sub-section (2) of section 248 for removing the name from the register of companies on the grounds mentioned in sub-section (1) of section 248.

(tick

whichever is applicable)

(2) Therefore, on the basis of aforesaid ground(s), I intend to remove the name of company from the register of companies and request you to send your representation along with copies of the relevant documents, if any, within thirty days from the date of receipt of this notice.

(3) Unless a cause to the contrary is shown within the time period above mentioned, the name of the above mentioned company shall be liable to be removed from the register of companies.

However, the directors of the company shall be liable for appropriate action under the Act.

Registrar of Companies

To

The Company/ All Directors

Mailing address as per record available in

Registrar of Companies Office

Copy to all directors : [in case the notice issued to the company only]

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Form

No. STK-2

[Pursuant to Section 248(2) of Companies Act, 2013 and Rule 4(1) of the Companies (Removal of Names of Companies from the Register of Companies) Rules, 2016]

Application by company to ROC for removing its name from register of companies

Form languageEnglishHindi

Refer the instruction kit for filing the form

1.

(a) *Corporate identity number (CIN) of the company

(b) Global location number (GLN) of the company

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2.

(a) Name of the company

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|

| (b) Address of registered office of the company

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|

| (c) email id of the company

|

|}

(d) Date of incorporation of the company

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3.

(a) *Whether the company is listed or not

YesNo

(b) *Whether the company has been delisted

YesNo

(If yes, attach a copy of relevant order for delisting from
the concerned stock exchange)

*4.

Whether the company's activities is/ are regulated by a
Sectoral Regulator like RBI, SEBI, IRDAI etc. under a special ActYesNo

(a) If Yes, specify Name of the regulator

{|

|}

(b) Registration Number

{|

|}

(c) Date of approval of regulatory body

{|

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5.

*Whether special resolution is passed for removal of name

YesNo

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(a) *Specify the date of passing the resolution

(b) *If No, whether consent of seventy-five percent members in
terms of paid-up share capital has been obtained and attachedYesNo

6.

(a) *Brief description of main objects of the company as per Memorandum of Association (MOA)

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|

| (b) *Brief description of main business last carried out by the company

|-

|
|
|}

7.

Details of director(s), Managing Director, manager, secretary, CEO or CFO of the company

Number of director(s), Managing Director, manager, secretary, CEO or CFO

(In case of director or Managing Director, enter Director identification number (DIN). Otherwise provide Income-tax permanent account number (Income-tax PAN) or passport number)

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*DIN orIncome-tax PANPassport number

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* Designation

{|

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* Name

{|

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* Present residential address

Line I

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Line II

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|}

City

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| State

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| ISO country code

|

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Country

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| Pin code

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8.

(a) *Whether there are litigation(s) pending against or involving the company or any of its directors

YesNo

(b) *Details in respect of pending litigation

(In case of more than one litigation, attach a separate sheet giving particulars for all such litigations)

(i) Act under which litigation is pending

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| (ii) Name of the authority before which it is pending

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(iii) Case number

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|
|
| (iv) Subject matter

|
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9.

I,* _____ son/ daughter of
_____ MD/Director of hereby make this
application for removing the name of the company from the
register of companies under section 248 of the Act and declare
that:

- (i) I have been authorized by the Board of Directors?
resolution No*..... dated* to sign and submit
this application for removal of name of the company from the
register of companies;
- (ii) The application has been in accordance with the
conditions mentioned under sub-section (1) and (2) of section 248
and sub-section (1) of section 249;
- (iii) There is no inspection or investigation ordered and
carried out or yet to be carried out or being carried out against
the company and where inspection or investigation have been
carried out, no prosecution is pending in any court arising out
of such inspection or investigation;
- (iv) The company is neither having any public deposits which
are outstanding nor the company is in default in its repayment or
interest thereon;
- (v) The company does not have any outstanding loans, secured
or unsecured;
- (vi) The company does not have any dues towards income tax,
VAT, excise duty, service tax or any other tax or duty, by
whatever name called, payable to the Central or any State
Government, statutory authority or local authority;
- (vii) All the other liabilities of the company have been
settled or discharged or extinguished;
- (viii) All the requirements of the Act and rules made
thereunder relating to removing the name of the company from the
register of companies and matters incidental or supplemental
thereto have been complied with;
- (ix) To the best of my knowledge and belief, the information
given in this application and its attachments is correct and
complete;
- (x) the requisite fee has been paid.

10.

I/ We understand that I/ We shall be liable for punishment as
provided under section 251 of the Companies Act, 2013 if the

application is found to be fraudulent at any stage within the meaning of section 251 read with sections 248 and 249 of the Companies Act, 2013.

Attachments

List of
attachments

{|

| -

| 1.

| * A statement of accounts showing the assets and liabilities of the Company made up to a day, not more than thirty days before the date of application and certified by a Chartered Accountant;

|

| -

| 2.

| * Copy of Board resolution authorizing the filing of this application;

|

|

| -

| 3.

| * Copy of special resolution passed or copies of consent obtained under sub-section (2) of section 248, as applicable;

|

|

| -

| 4.

| * Indemnity bonds [to be given individually or collectively by the director(s)] in Form No. STK-3;

|

|

| -

| 5.

| * Affidavit in Form No. STK-4

|

|

| -

| 6.

| Copy of order of the concerned regulatory authority, if any, approving the filing of this application;

|

|

| -

| 7.

| Copy of relevant order for delisting, if any, from the concerned Stock Exchange;

|

|

| -

| 8.

| Other attachments as per applicable Rule;

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| 9.
| Optional attachment(s), if any.
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To be digitally signed by

*Designation

{|
|}

*Director identification number of the director; or

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| DIN or PAN of the manager or CEO or CFO; or

|
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| Membership number of the Company secretary

|
|}

Certificate by practicing professional

I declare that I have been duly engaged for the purpose of certification of this form. It is hereby certified that I have gone through the provisions of the Companies Act, 2013 and Rules thereunder relevant to this form and I have verified the above particulars (including attachment(s)) from the original records maintained by the Company/ applicant which is subject matter of this form and found them to be true, correct and complete and no information material to this form has been suppressed.

To be digitally signed by

Chartered accountant (in whole-time practice) or

Cost accountant (in whole-time practice) or

Company secretary (in whole-time practice)

Whether associate or fellowAssociateFellow

Membership numberCertificate of practice number

Note : Attention is also drawn to provision of section 448 which provides for punishment for false statement and certification.

For office use only:

eForm Service request number (SRN)

eForm filing date

(DD/MM/YYYY)

Digital signature of the authorising officer

This e-Form is hereby approved

This e-Form is hereby rejected

Date of signing

(DD/MM/YYYY)

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Form No. STK - 3

Indemnity Bond

(To be drawn on Stamp Paper of appropriate value)

(to be given individually or collectively by

every director)

[Pursuant to clause (i) of sub-rule (3) of
rule 4 of the Companies (Removal of Names of Companies from the
Register of Companies) Rules, 2016]

To,

The Registrar of Companies,

1. I/ We, the Director(s) of

(mention name of the Company), incorporated on

..... under the Companies Act, 2013 or

Companies Act, 1956 having its registered office at

..... do hereby declare that:

(i) I/ We

..... S/o/D/o/W/o Shri.

am/are Director(s) of this Company.

(ii) That I/

We have made an affidavit confirming that the company does not
have any assets and liabilities as on date.

(iii)

Further, the Company has been inoperative from the date of its
incorporation/The Company commenced business/ operations/
commercial activity after incorporation but has been inoperative
for the past year(s) (strike out whichever
is not applicable). Thus the Company is defunct and I request the
Registrar of Companies,..... to strike off the name
of the Company from the register of companies under Section 248
of the Companies Act, 2013.

2. I/ We do hereby undertake to indemnify : -

(i) the

claimants for all lawful claims against the company arising in
future after the striking off the name of the Company.

(ii) any

person for any losses that may arise pursuant to striking off the
name of the Company.

(iii) the

claimants for all lawful claims and liabilities, which have not
come to our notice up to this stage, and if any claim arises or
observed even after the name of the Company has been struck off
in terms of Section 248 of the Companies Act, 2013.

Place :

Date :

(Name, Father's name, Address and Signature)

(To be given by every Director)

Witnesses :

1. Signature :

Name :

Father's

name :

Address :

Occupation :

2. Signature :

Name :

Father's

name :

Address :

Occupation :

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Form No. STK -4

Affidavit

(to be given individually by every Director)

[Pursuant to sub section (2) of section 248

read with clause (iii) of sub-rule (3) of Rule 4]

1. I/ We Director of.....

(hereinafter called 'the Company?'), incorporated on

..... under the Companies Act, 2013 or the Companies

Act, 1956 having its registered office at.....

and having CIN do solemnly affirm and state as

under:

(i) I/ We

..... S/o / D/o Shri/Smt..... Holder of

DIN/Income Tax PAN/Passport number (copy

of Income Tax PAN/Passport duly attested by a Gazetted Officer or

a whole time practicing professional viz Chartered

Accountant/Company Secretary/Cost Accountant) am Director of the

Company stated above since..... (mention date of

appointment).

(ii) My

present residential address is..... (copy of

documentary evidence duly attested by a Gazetted Officer or a

whole time practicing professional viz Chartered

Accountant/Company Secretary/Cost Accountant) is enclosed

(Alternatively, an affidavit sworn before Magistrate may be

enclosed).

(iii) My

permanent address is..... (copy of

documentary evidence duly attested by a Gazetted Officer or a

whole time practicing professional viz Chartered

Accountant/Company Secretary/Cost Accountant) is enclosed

(Alternatively, an affidavit sworn before Magistrate may be

enclosed).

(iv) The

Company does not maintain any bank account as on date.

(v) The

Company (mention name of the Company) does not have any assets and liabilities as on date.

(vi) The

Company has been inoperative from the date of its incorporation/The Company commenced business/operations/ commercial activity after incorporation but has been inoperative for the past year(s) due to following reasons..... (give the reasons here).

(vii) As on

date, the Company does not have any dues towards Income Tax/Sales Tax/Central Excise/Banks and Financial Institutions; and other Central or State Government Departments/Authorities or any Local Authorities.

2. I further affirm that ?

- (i) No inquiry, technical scrutiny, inspection or investigation is ordered or pending against the company;
- (ii) No prosecution or any compounding application for any offence under the Act or under any of the other Acts is pending against the company or against the undersigned;
- (iii) The company is neither listed nor delisted for non-compliance of listing agreement;
- (iv) The company is not a company incorporated for charitable purposes under section 8 of the Companies Act, 2013 or section 25 of the Companies Act, 1956;
- (v) The company does not have any management disputes or there is no litigation pending with regard to management or shareholding of the company;
- (vi) No order is in operation staying filing of the documents by a court or tribunal or any other competent authority;
- (vii) The company is not prevented from making the applications for strike off as mentioned in section 249 of the Act.

(viii) [The company has fulfilled all pending compliances, if any [Applicable in case an application under sub-section (2) of section 248 has been filed after the initiation of action under sub-section (1) of section 248]

[Inserted by Notification No. G.S.R. 350(E), dated 8.5.2019 (w.e.f. 26.12.2016).]

I solemnly state that the contents of this affidavit are true to the best of my knowledge and belief and that it conceals nothing and that no part of it is false.

Signature : _____

(Deponent)

Verification:-

I verify that the contents of this affidavit are true to the best of my knowledge and belief.

Place:

Signature : _____

(Deponent)

Date:

Note : Attention is also drawn to provisions of section 449 which provide for punishment for false evidence.

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Form No. STK - 5

Public Notice

[Pursuant to sub-section (1) and sub-section

(4) of section 248 of the Companies Act, 2013 and rule 7 of the Companies(Removal of Names of Companies from the Register of Companies) Rules, 2016]

Government of India

Ministry of Corporate Affairs

Office of the Registrar of Companies

(Address of RoC)

Public Notice No.-----

Date:-----

Reference:

In the matter of striking off of companies under section 248

(1) of the Companies Act, 2013, of M/s. _____, M/s.
_____, M/s_____

1. Notice is hereby given that the Registrar of Companies has a reasonable cause to believe that -

(i) The

following companies have not commenced business within one year of their incorporation.

M/s _____

(indicate names of companies)

M/s _____

(ii) The

following companies have not been carrying on any business or operation for a period of two immediately preceding financial years and have not made any application within such period for obtaining the status of dormant company under section 455.

M/s.

M/s.

_____ (indicate name of companies)

And, therefore, proposes to remove/strike off the names of the above mentioned companies from the register of companies and dissolve them unless a cause is shown to the contrary, within thirty days from the date of this notice.

2. Any person objecting to the proposed removal/striking off of name of the companies from the register of companies may send his/her objection to the office address mentioned hereabove within thirty days from the date of publication of this notice.

Registrar of Companies

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[Form No. STK - 5A]

[Inserted by Notification No. G.S.R. 355(E), dated 12.4.2017 (w.e.f. 26.12.2016).]

Public Notice

[Pursuant to sub-section (1) and sub-section (4)

of section 248 of the Companies Act, 2013 and second proviso to rule 7(1) of the Companies (Removal of Names of Companies from

the Register of Companies) Rules, 2016]

Government of India

Ministry of Corporate Affairs

Office of the Registrar of Companies

(Address of RoC)

Public Notice No. -----

Date : -----

Reference:

In the matter of striking off names of companies
under section 248 (1) of the Companies Act, 2013, of the
companies as per details below:-

1. Notice is hereby given that the Registrar of
Companies has a reasonable cause to believe that, the companies,
whose names are listed on the _____ (provide web link of the
page on Ministry's website where the names are listed),-
(i) have not commenced business within one year of their
incorporation; Or
(ii) have not been carrying on any business or operation for a
period of two immediately preceding financial years and have not
made any application within such period for obtaining the status
of dormant company under section 455 of the Companies Act, 2013.

[Strike off

whichever is not applicable]

And, therefore, proposes to remove/ strike off

the names of the above mentioned companies from the register of
companies and dissolve them unless a cause is shown to the
contrary, within thirty days from the date of such notice.

2. Any person objecting to the proposed
removal/striking off of name of the companies from the register
of companies may send his objection to the office address
mentioned hereabove within thirty days from the date of
publication of this notice.

Registrar of Companies

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Form No. STK ?

6

Public Notice

[Pursuant to sub-section (2) and sub-section
(4) of section 248 of the Companies Act, 2013 and rule 7 of the
Companies(Removal of Names of Companies from the Register of
Companies) Rules, 2016]

Government of India

Ministry of Corporate Affairs

Office of the Registrar of Companies

(Address of RoC)

Public Notice No.-----

Date:-----

Reference:

In the matter of striking off or removal of names of companies

under section 248 (2) of the Companies Act, 2013 in respect of :

1.

M/s. _____,

2. M/s.

_____,

3.

M/s _____

Notice is hereby given that the Registrar of Companies had received applications from the above mentioned companies under section 248(2) of the Companies Act, 2013 for removal of its/their name (s) from the register of companies either on the ground that they have failed to commence business within one year of their incorporation or on the ground that the company (ies) is/are not carrying on any business or operation for a period of two immediately preceding financial years and has/have not made any application (s) within such period for obtaining the status of a dormant company under section 455 of the Companies Act, 2013 or the company(ies) have obtained the status of dormant company, but it/they do not wish to continue its/their registration as companies and have, therefore, requested for removal/strike off of its/their names from the register of companies.

(2) Accordingly, the Registrar of Companies proposes to remove or strike off the names of the above mentioned companies from the Register of Companies.

(3) Any person objecting to the proposed removal or striking off of name of the companies from the register of companies may send his or her objection to the office address mentioned here above within thirty days from the date of publication of this notice.

Registrar of Companies

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Form No. STK -

7

Notice of Striking off and Dissolution

[Pursuant to sub-section (5) of section 248 of the Companies Act, 2013 and rule 9 of the Companies (Removal of Names of Companies from the Register of Companies) Rules, 2016]

Government of India

Ministry of Corporate Affairs

Office of the Registrar Of Companies

(Address of RoC)

Dated:-----

Reference:

In the matter of Companies Act, 2013 and of M/s

-----, CIN -----

This is with respect to this Office's Notice No. _____ dated

_____ application (Form STK 2) dated ----- vide SRN

..... and notice in form STK 5 issued on

dated _____. Notice is hereby published that pursuant to

sub-section (5) of Section 248 of the Companies Act, 2013 the
name of M/s----- has this day of
..... been struck off the register of companies
and the said Company is dissolved.

Registrar of Companies

Registrar of Companies/ Additional Registrar of
Companies/ Joint Registrar of Companies/ Deputy Registrar of
Companies/ Assistant Registrar of Companies

Mailing Address of the company as per record available in
Registrar of Companies office:

M/s -----

l}

[Form No. STK-8]

[Inserted by Notification No. G.S.R. 350(E), dated 8.5.2019 (w.e.f. 26.12.2016).]

[See rule 4(3)(ii)]

Statement of Account

Name of the Company:

CIN No.

Statement of Account as on date:

Particulars : (Brief
break up in respect of each item needs to be given).

{|

Amount (Rs.)

|-

| I. Sources of Funds

|

|

|-

| (1) Capital

(2)

Reserves and

Surplus (including balance in Profit and Loss Account)

(3)

Loan Funds

|

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| Secured loans from

Financial Institutions

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| Secured loans from
Banks

| -

| Secured loans from
Govt.

| -

| Others Secured loans

| -

| Debentures

| -

| Unsecured Loans

| -

| Deposits and interest
thereon

| -

|

|

|

|

| -

| Total Loan Funds

|

| -

| Total of (1) to (3)

|

| -

| II. Application of

Funds

|

| -

| (1) Fixed Assets

|
|-
| (2) Investments
|
|
|-
| (3) (i) Current
Assets, loans and Advances
{
-
-
-
}
-
Less : (ii) Current
Liabilities and provisions
-
Creditors
-
Unpaid Dividend
-
Payables
-
Others
-
-
Total Current
Liabilities and provisions
Net Current assets (i
? ii)
{
-
-

|
|-
|
}
-
(4) Miscellaneous
expenditure to the extent not
written off or
adjusted

|
|-
|
|-
| (5) Profit and Loss
Account (Debit balance)

|
|
|-
| Total of 1 to 5

|
{
-
}
-

| Date :
Place:

|
|-
|
|-
| Name and Signature of
(Managing Director)*

|
|-
| Name and Signature
(Secretary)

*
|
|-
| Name and Signature of
(Directors)

|
|-
| * Applicable only if
there is MD/Secretary

|

|-

| Duly certified by

Chartered Accountant in whole time practice.

|

|-

| Membership

No/Certificate of Practice Number with seal.

|

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Related AI tags, queries and research notes

Translation